



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING

Monday, July 1, 2024, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, July 1, 2024, at 7:00 PM at the Town Offices, 1 South Road.

Call to Order

The meeting was called to order at 7:00 PM by Mr. Scott Johndrow.

Present: Scott Johndrow, Susan Bronstein, Jennifer Milikowsky

Others Present: Douglas Finn; others as noted.

Unanticipated Business – Resident comments about P27 Event, 331 Main Road

Mr. Finn noted written correspondence had been received as follows:

- 2024-0630 - LETTER - from Jonathan Kahane.pdf
- 2024-0630 - LETTER - From Michael Matrishon.pdf
- 2024-0630 - LETTER - From White to Kahane.pdf

There was some discussion regarding the event, the amount of noise that was generated, and whether the amount of noise was reasonable.

Ms. Lisa Marney and Mr. Mike Matrishon made note that they were not notified of the event in advance. Mr. Johndrow replied that the board were told by the event organizers that they had been notified by the organizers.

There was some discussion about the manner by which the event received 'permission' and/or was reviewed by the Selectboard.

Mr. Matrishon spoke against the event, and noted that he would speak against similar events on the same site in the future.

Mr. John Kahane was present, and spoke firmly against the event, describing it as 'a horror show'. He asked if the board would have approved such an event in their own backyard.

Mr. Kahane noted that he could not 'sit calmly in his house with the windows closed' on Sunday. He noted that he went to the site of the event to complain, and his concerns were not responded to. Mr. Kahane also noted that he had spoken with the chief of police about the event.

Ms. Milikowsky noted that, due to the way the town bylaws are written, no approval was sought, nor could approval for the event be granted – or withheld. Other board members reiterated that no permit or license was required by the town's bylaws, and therefore none was granted. However, the Selectboard had endeavored to foresee potential problems, discuss them with the organizers of the event, and asked them to prepare contingencies in case of problems or emergencies.

There was extensive discussion on the matter. Mr. John Shaw suggested that a general bylaw change might be drafted that would require more thorough review of such an event.

After some discussion, Mr. Johndrow concluded the conversation, thanking the residents who attended to speak to the matter, and noted that there would be further conversations on the matter at subsequent meetings.

Department Reports

Highway

Mr. Jablonski reviewed recent work completed by the highway department.

Review of Highway Clerk Applications

Mr. Jablonski noted that he and Mr. Finn had received one application, and conducted one preliminary interview with one candidate, who came qualified and recommended.

However, Mr. Jablonski noted that both he and Mr. Finn would like to wait at least one more week before making a recommendation to the Board.

No further action taken.

Police

Confirmation of pay rates for detail officer(s)

Chief David White noted changes to rates for hourly officers; the Selectboard, having approved the rate, noted no action was necessary.

Cemetery Commission

Mr. John Shaw was present to speak to certain matters relative to the Cemetery Commission.

Cemetery Superintendent Resignation

Mr. John Shaw noted that he had received written notice of the resignation of Mr. Ed Fisher, effective 1 July 2024.

Review of Revised Rules

Mr. Shaw reviewed revised rules with the board. There was some discussion relative to the removal of smaller plantings and shrubs, and the (potential) planting of trees. Other proposed rules were reviewed. Mr. Shaw asked for a vote of endorsement of the proposed rules.

It was MOVED by Bronstein, SECONDED by Milikowsky

To approve the revised cemetery rules as presented.

VOTED: 3, 0, 0 (7:36 PM)

Review of Fee Schedule

Mr. Shaw presented a revised schedule of fees, and reviewed same with the board. He noted that fees had not been changed in nearly eight years; a comparison of current fees with other cemeteries revealed that the Town's existing rates were well below all surrounding town's fees.

Mr. Shaw noted that he would like to manage foundation pouring so it can be done on a spring / fall schedule, instead of on an as-requested basis.

There was some discussion relative to the proposed price increases.

There was discussion relative to the need to digitize the records for the cemetery, to allow easier access. Question: will the information be available through the Town's website?

Answer: Yes, eventually.

After further discussion it was determined that

- John Shaw will continue to serve as a point of contact for funeral directors, and residents
- The highway department will work through the summer to maintain the grounds, and (if needed) assist with grave openings and closing.
- The Cemetery Commission will further review the situation, and provide recommendations to the Selectboard in the future.

Community Policing Study

Mr. Johndrow noted that the town was overdue in commencing a discussion about what policing in Westhampton would look like in the future.

Chief David White noted that the conversation had been going on, informally, for the past couple of years. Some options (full-time department, regionalization, contracting with other towns, coverage by State Police) were briefly touched on.

Several factors were discussed, such as the existence of the new facility, quality of vehicles, and the proximity of Westhampton to other small towns.

After extensive discussion, the board agreed **to form an ad-hoc committee to study community policing in Westhampton, and to advertise to the public for a core group of no more than five, with the Police and Fire Chief serving as advisors.**

Public Comment

A member of the public asked whether some sort of illuminated sign could be placed at Southampton Road and Main Road intersection. There was some discussion on the location, and the format that the sign might take. No action taken.

FY2025 Appointments

Mr. Finn presented a draft list of appointments for the FY2025 fiscal year.

The board discussed whether appointees should confirm their desire to continue in the appointments.

After review, it was MOVED by Bronstein, SECONDED by Milikowsky

That all appointees be reappointed as proposed; that all appointees must confirm their acceptance of the appointment by August 1; those who do not accept the appointment by August 1 shall be considered a declination of the appointment, and their space shall be filled with others.

VOTED: 3, 0, 0. (8:28 PM)

Administrative Business

End of Year Transfer Request – Health Insurance

Mr. Finn presented an end of year transfer request, moving \$21,850 from Unemployment to Health Insurance. He noted that Town Treasurer Ryan Mailloux had confirmed that the amount appropriated for FY2025 should be sufficient to get through the fiscal year.

After review, it was MOVED by Bronstein, SECONDED by Milikowsky

To approve the transfer request as presented.

VOTED: 3, 0, 0. (8:30 PM)

Request for appropriation of ARPA funding:

Mr. Finn presented an estimate for the transition from locally-served accounting software to 'cloud' served software. A draft contract was reviewed. Mr. Finn stated that the move would allow the town to decommission the in-house server, saving maintenance and electricity costs; also that the move to a cloud-hosted server would increase 'uptime' improve remote access to the town's data.

Mr. Finn noted recent changes to the 'final rule' for ARPA funds use:

ARPA Funds must be 'obligated' by December 31, 2024. However, US DOR has ruled that an obligation is NOT:

- An adopted budget or budget amendment
- An appropriation of SLFRF funds
- An executive order
- A resolution
- A written or oral intention to enter into a contract
- A grant of legal authority to enter into a contract
- Claiming funds under the revenue loss category
- Moving SLFRF funds to a general fund as revenue loss but not further establishing an obligation with those funds by 12/31/24

Case example: A city council has passed its FY24 budget, which outlines exactly how SLFRF funds are to be used.

Question: Has the city obligated its SLFRF funds?

Response: No. A budget and/or appropriation authority for SLFRF funds is not considered an obligation. The city will need to obligate its funds through at least one of the mechanisms outlined on slide 8/below and report the project(s) in their Project and Expenditure report due January 31, 2025 (quarterly reporters) or April 30, 2025 (annual reporters).

No further action taken relative to ARPA funding.

Review of Correspondence

Correspondence was reviewed:

- 2024-0620 - LETTER - From Arlene Miller - Re MRF Contract Status

No action taken.

Review/ Approval of AP and Payroll Warrants

After review, it was MOVED by Bronstein, SECONDED by Milikowsky

To approve W24-27 and WP24-27 as presented.

VOTED: 3, 0, 0 (8:50 PM)

Review of Minutes

After brief review, and a slight amendment, it was MOVED by Bronstein, SECONDED by Milikowsky

To approve the minutes as presented.

VOTED: 3, 0, 0 (8:52 PM)

New Business / Unanticipated Items

The board signed the settlement contract between the Town and W. J. Mountford.

There was extensive informal discussion between board members and Mr. Finn about the processes by which applications are submitted to the town, transmitted to various boards and committees, and by which potential applicants are engaged by town board members or staff. No specific action taken, but Mr. Finn was advised to refrain from expressing any opinions relative to any given application or inquiry, reserving such to the applicable board or committee that might oversee the matter.

Adjournment

There being no further business, it was MOVED by Bronstein, SECONDED by Johndrow

To adjourn.

VOTED: BRONSTEIN: YES; MILIKOWSKY: YES; JOHNDROW: YES (9:23 PM)

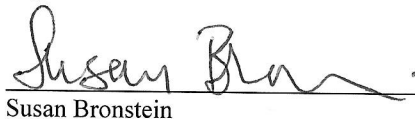
Respectfully submitted,

Douglas C. Finn

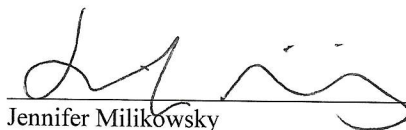
Approved by a vote of the Selectboard at a regular meeting, held on July 15, 2024.



Scott Johndrow



Susan Bronstein



Jennifer Milikowsky